

BOARDS, COMMITTEES AND COMMISSIONS

9 Attachment 3

City of Waterville

Appendix 1C

Committee Charge: Fair Hearing Authority [Adopted 12-28-2023 by Ord. No. 199-2023]

Establishment and Regulation.

City of Waterville General Assistance Ordinance, Chapter 157, Article VII, Fair Hearings
22 M.R.S. § 4305, Municipal Ordinance Required
1 M.R.S., Chapter 13, Freedom of Access
City of Waterville Ethics Ordinance (Chapter 18)

Purpose.

The Authority is charged with the responsibility of ensuring that General Assistance is administered in accordance with the state law and local ordinance.

Membership.

The Fair Hearing Authority consists of a single individual chosen on a rotational basis for each hearing from a three-member panel appointed by the Mayor and confirmed by the City Council.

Scope of Authority.

The Fair Hearing Authority will decide, based on all the evidence presented at the hearing, whether the individual is eligible for General Assistance.

Conduct of Business.

The Authority is an official body of the City. As such it is subject to Maine's Freedom of Access Act, 1 M.R.S. § 403, and must meet in a location accessible to the public, allow the public to attend its meetings, publicly post the dates and times of its meetings, and keep minutes for the public record.

No member of the Authority may participate in a matter before the Authority where that member has a conflict of interest. If a question arises as to whether a member has a conflict of interest, after disclosure, the remaining members shall make that determination. The Authority may review the Ethics Ordinance or consult with the Solicitor on conflict of interest questions.

Within five working days of receiving a written notice of denial, reduction, or termination of assistance, or within 10 working days after any other act, or failure to act, the applicant or the authorized representative has the right to request a fair hearing which is not limited solely to a review of the decision, but rather a full evidentiary hearing. Upon receipt of the written request, the Fair Hearing Authority must meet and hold the hearing within five working days, notice of which will be provided to the applicant in writing.

Reporting.

The Fair Hearing Authority's decision will be communicated to the claimant in writing within five business days of the hearing.